

IN THE SUPREME COURT FOR ZAMBIA

HOLDEN AT NDOLA

(Criminal Jurisdiction)

BETWEEN:

OBED CHANDA

1ST APPELLANT

CHARLES CHISANGA

2ND APPELLANT

AND

THE PEOPLE

RESPONDENT

CHIRWA Ag/DCJ, MWANAMWAMBWA AND MUYOVWE JJS

On the 20th March 2012 and 6th June, 2012

For the Appellants: Mr. N.M. Chomba, Acting Deputy Director, and
Mrs. M.T. Weza, Legal Aid Counsel, Legal Aid Board,

For the Respondent: Mr. P. Mutale, Acting Chief State Advocate

J U D G M E N T

MUYOVWE, JS, delivered the Judgment of the Court.

Cases referred to:

- 1. Kambarage Mpundu Kaunda vs. The People (1990/92) Z.R. 91**

2. **Bornface Chanda Chola and Others vs. The People (1988/89) Z.R.163**
3. **Mushala vs. The People (1978) Z.R 62**
4. **Chimbo and Others vs. The People (1982) Z.R 20**
5. **Katebe vs. The People (1975) Z.R.13**
6. **Emmanuel Phiri and Others vs. The People (1978) Z.R. 79**
7. **Jack Chanda and Kennedy Chanda vs. The People (2002) Z.R 124**
8. **Christopher Nonde Lushinga vs. The People SCZ Judgment No. 15/2011**

The Appellants were convicted of the offence of murder contrary to **Section 200 of the Penal Code Cap 87 of the Laws of Zambia**. The particulars allege that on 17th December, 2007 at Mpika in the Mpika District of the Northern Province of the Republic of Zambia, jointly and whilst acting together with other persons unknown they murdered Peter Mwila.

Initially, the Appellants were charged with one Michael Mutale Mwaitunga and Helen Mulenga. Michael Mutale Mwaitunga was acquitted at the close of the prosecution case, while Helen Mulenga was convicted together with the Appellants of the subject offence but was sentenced to seven (7) years imprisonment with hard labour.

In sum, the facts of this case are that Bernard Tambatamba, the elder brother to Helen Mulenga, fell ill on 14th December, 2007. His grandfather (PW1) in the company of other relatives took him to the hospital. However, on 17th December, 2007 he was discharged and he died as they proceeded back home. The funeral of

Benard Tambatamba, was held at PW1's house. During the funeral, Helen Mulenga attacked PW1 alleging that he was a wizard and that he was keeping the deceased in the village who was also a wizard.

PW2, the daughter to the deceased, Peter Mwila, testified that the Appellants went to the deceased's house with burning bundles of grass and they threatened to kill her as she refused to show them where the deceased was. As the Appellants searched for the deceased, they tried to demolish his house but they failed and instead, they set the house on fire. PW2 said the Appellants discovered where her deceased father was hiding, apprehended him and started beating him with fists and other weapons. When it started raining, they took the deceased into the funeral house at PW1's place. PW2 did not go into the funeral house but went back there the following morning to find that her father had died. She observed several wounds on his swollen head.

PW3 went to the funeral house on hearing of the death of Benard Tambatamba. As she left the funeral house, she met the 1st Appellant who slapped her and some people intervened. However, as she proceeded home, she met Helen Mulenga who was coming from her house who also accosted her. The Appellants, Helen Mulenga and others were searching for the deceased. PW3 went into hiding for fear of her life but she was following the group who had burning bundles of grass in their hands as it was getting dark. According to PW3, she identified the